THE BHARATIYA SAKSHYA ADHINIYAM, 2023 (BSA)

Act No. 47 of 2023 (Enacted by the Parliament of India, Effective July 1, 2024)
Statutory Concordance with the Indian Evidence Act, 1872 (IEA)

Section 63 BSA (Admissibility of Electronic Records) — Corresponds to Section 65B IEA

(1) Any information contained in an electronic record which is printed on a paper, stored, recorded or copied in optical or magnetic media or semiconductor memory or any other storage device, shall be deemed to be also a document and shall be admissible in any proceedings, without further proof or production of the original, if the conditions mentioned in this section are satisfied.
(2) Conditions: (a) The computer or electronic device was regularly used to store or process information; (b) Information of that kind was regularly supplied to the electronic record in the ordinary course; (c) Throughout the material part of the period, the computer or device operated properly or inoperability did not affect accuracy; (d) Information reproduced duplicates what was supplied.
(3) Certificate Mandate: In any proceeding where it is desired to give a statement in evidence by virtue of this section, a certificate doing any of the following things shall be submitted: identifying the electronic record, describing the manner of production, certifying device particulars, and signed by a person occupying a responsible official position in relation to the operation of the relevant device.

Section 61 & 62 BSA (Primary and Secondary Evidence) — Corresponds to Sections 62 & 63 IEA

Section 61 defines Primary Evidence as the document itself produced for inspection of the Court, including electronic records stored in multiple files, video recordings, and cryptographic hashes. Section 62 defines Secondary Evidence as certified copies, copies made by mechanical processes ensuring accuracy, counterparts of documents, and oral accounts of contents given by persons who have seen them.

Section 23 BSA (Discovery of Fact upon Information) — Corresponds to Section 27 IEA

Provided that, when any fact is deposed to as discovered in consequence of information received from a person accused of any offence, in the custody of a police officer, so much of such information, whether it amounts to a confession or not, as relates distinctly to the fact thereby discovered, may be proved. This codifies the doctrine of confirmation by subsequent discovery, preserving an essential constitutional exception to police confession inadmissibility.

Section 24 & 25 BSA (Confessions to Police Officers) — Corresponds to Sections 25 & 26 IEA

No confession made to a police officer shall be proved as against a person accused of any offence. No confession made by any person whilst he is in the custody of a police officer, unless it be made in the immediate presence of a Magistrate, shall be proved as against such person.

Section 116 BSA (Presumption as to Abetment of Suicide) — Corresponds to Section 113A IEA

When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative had subjected her to cruelty, the Court may presume that such suicide had been abetted by her husband or relative.